

BEFORE THE FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC.

Complainant,

v.

SM LINE CORPORATION

Respondent.

Docket No. 23-01

DECLARATION OF CHRISTOPHER R. NOLAN

CHRISTOPHER R. NOLAN hereby declares as follows:

1. I am an attorney at Holland & Knight LLP (“H&K”), counsel for Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) in the above-captioned matter.
2. I am a member in good standing of the Bars of New York and Illinois and have filed an appearance in this proceeding.
3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.
4. On November 18, 2023, Complainant filed an application requesting the Presiding Officer issue a Letter of Request to allow Complainant to take the deposition of Yoon-Jai (“Mark”) Lee, pursuant to the Hague Convention on the Taking of Evidence Abroad in Civil or Commercial Matters. Mr. Lee, the former Senior Vice President of Respondent SM Line Corporation (“Respondent” or “SM Line”), was at the time a resident of South Korea.
5. The Presiding Officer signed the Order granting SEA’s request for the Letter of Request three days later, on November 21, 2023.

6. SEA undertook considerable efforts to support the Letter of Request, including with the U.S. Department of State Office of Legal Affairs.

7. On August 14, 2024, SEA received a “Notification of the time and place for the execution of Request” from the Seoul Central District Court (“Notice”), which was taking action in connection with the Letter of Request, by issuing a notice that Mr. Lee’s testimony would be taken on September 10, 2024 at 2:00 PM KST in Court Room No. 370, East Building 157, Seochojungang-ro, Seocho-gu, Seoul, Republic of Korea, Seoul Central District Court.

8. SEA, through efforts with counsel in Korea liaising with the Seoul District Court, obtained further details beyond what was provided in the Notice. That is, the Seoul District Court was unsuccessful in effectuating service of the Notice on Mr. Lee in Korea and that the date was set by the Court without engagement with Mr. Lee or his counsel.

9. With service unsuccessful, the Seoul Central District Court advised that the testimony proceeding on September 10, 2024 will not proceed.

10. In due course, the Seoul Central District Court further advised that if it cannot serve the Notice on Mr. Lee in Korea, it will issue an official "certification of failure to investigate due to service failure.”

11. SEA sent a letter on September 4, 2024, to Mr. Lee at his new office address in the U.S. to inform him of the Seoul Central District Court’s order that he provide testimony in this proceeding. To date, SEA has not received any response from Mr. Lee to its letter, and understand Mr. Lee did not appear before the Seoul District Court pursuant to the Notice and the matter did not proceed.

I certify under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: September 12, 2024

/s/ Christopher R. Nolan
Christopher R. Nolan
Holland & Knight LLP